

Ref No.: BD-ACEPM-SAMCO-LET-038

Date: Wednesday, 10th of June 2026

To: SAMCO National Construction Company
Attention: Eng. Mohammed Sami Mohammed (Project Manager)

Project Name: The Big Business District
Contract/Package: Construction Works of the Civil Works for Buildings B1, B2, B3 and B4

Subject: Re: Response to Notice-Alleged Failure to Achieve Section (1) Milestone "Ref No.: BD-ACEPM-SAMCO-LET-036".

Reference (S): 1) Contractor's Letter Ref. BD-CW-SAMCO-ACE-LET-STR-080 dated 24/05/2026

Dear Sir,

The Engineer acknowledges receipt of the Contractor's notices referenced therein and confirms awareness of the events described. However, it is expressly clarified that the issuance of notices and/or the occurrence of an alleged event does not, in itself, establish any entitlement to an Extension of Time (EOT) and/or additional Cost. Any such entitlement shall only arise following a formal determination based on full compliance with the Contract provisions.

In relation to the Contractor's assertion that the assessment of progress, milestone achievement, or delay responsibility should consider cumulative impacts arising from Employer-related delays, IFC Package revisions, design coordination issues, and delayed responses to technical queries affecting critical activities and the approved construction programme, the Engineer does not accept these assertions. Such statements are not admitted and are not consistent with the Contract provisions.

It is further clarified that all assessments of delay, progress, and entitlement shall be based strictly on the latest approved programme, or any subsequently approved revised programme, in accordance with the Contract requirements. Any entitlement for Extension of Time and/or additional Cost shall be governed exclusively by the provisions of Sub-Clause 20.1 [Contractor's Claims], including strict compliance with notice requirements and substantiation obligations.

Accordingly, the Contractor is reminded that any claim arising from the alleged delayed supply of reinforcement steel, or any other alleged delaying event, shall be submitted strictly in accordance with Sub-Clause 20.1 of the Conditions of Contract. Such submission shall include, without limitation, full particulars supported by contemporaneous records, detailed cause-and-effect analysis, critical path impact assessment, and a properly substantiated delay analysis demonstrating entitlement under the Contract.



This correspondence shall not be construed as acceptance, admission, or waiver of any rights or obligations of the Employer and/or the Engineer, all of which are hereby expressly reserved.



Yours faithfully,

Eng. / Abdelaziz Mohammed

MOHARRAM BAKHOUM

Project Manager

ACE Project Management

Attachment(s):

CC:

Eng. Mostafa Galal - Owner representative

Eng. Ahmed Saafan – Project Controls Director

Eng. Ramy Refaat – Commercial Contracts Director

Eng. Osama Waly – PCO representative